Global
dataquantum

TERMS AND CONDITIONS OF USE OF “QUANTUM PORTFOLIO OPTIMIZER” (EULA)

This End User License Agreement (“Agreement”) is entered into between GLOBAL DATA QUANTUM, S.L. (“Provider”) and the end user (‘Customer’) who accesses or uses the ‘Quantum Function "Quantum Portfolio Optimizer"’ feature (“Program”).

BY ACCESSING OR USING THE PROGRAM, THE CUSTOMER ACCEPTS THE TERMS OF THIS AGREEMENT.

1. License Grant

The Provider grants the Customer a non-exclusive, non-transferable, limited license to access and use the Program in accordance with this Agreement and the applicable IBM terms of service.

No ownership or title rights to the Program are transferred to the Customer under any circumstances.

2. Restrictions

The Customer may not:

(a) copy, modify, or distribute the Program;
(b) reverse engineer, decompile, or disassemble the Program;
(c) remove any intellectual property notices or trademarks; or
(d) use the Program in violation of any applicable law or regulation.

3. Intellectual Property

The Program and all related materials are the exclusive property of the Provider and are protected by applicable intellectual property laws.

All rights not expressly granted herein are reserved by the Provider.

4. Disclaimer of Warranties

The Program contains no warranty of any kind, either express or implied, including, but not limited to, those of merchantability, fitness for a particular purpose, or non-infringement by the customer.

The Provider does not warrant that the Program will be error-free or uninterrupted, or that all defects will be corrected.

5. Limitation of Liability

IN NO EVENT SHALL THE PROVIDER BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, OR CONSEQUENTIAL DAMAGES (INCLUDING LOSS OF PROFITS, DATA OR USE) ARISING OUT OF OR IN CONNECTION WITH THE USE OF THE PROGRAM OR AS A RESULT OF THIS AGREEMENT.

6. Term and Termination

This agreement shall become effective upon the Customer's acceptance of these terms and conditions.

The Provider may terminate this agreement immediately if the Customer breaches any of its terms, without prior notice. Upon termination, the Customer shall immediately cease all use of the Program.

7. Data Protection

The Provider complies with applicable data protection laws, including the General Data Protection Regulation (GDPR).

The Program does not require or store personal data, unless expressly authorized by the Customer.

8. Applicable Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of Spain.

Any dispute arising out of or in connection with this Agreement shall be subject to the exclusive jurisdiction of the courts of Madrid, Spain.

9. Entire Agreement

This Agreement supersedes all prior communications, proposals, or agreements, whether oral or written.